

Per Curiam

IN RE ANDERSON

ON MOTION FOR LEAVE TO PROCEED IN FORMA PAUPERIS

No. 93-8312. Decided May 2, 1994

During the last three years alone, *pro se* petitioner Anderson has filed 22 separate petitions and motions, most for extraordinary writs. This Court denied all of them without recorded dissent. He was also denied leave to proceed *in forma pauperis*, pursuant to this Court's Rule 39.8, on the last three occasions that he has submitted petitions for extraordinary relief.

Held: Anderson is denied leave to proceed *in forma pauperis* in the instant case, and the Clerk is instructed not to accept any further petitions for extraordinary writs from him unless he pays the required docketing fee and submits his petitions in compliance with Rule 33. For the reasons discussed in *In re Demos*, 500 U. S. 16, *In re Sindram*, 498 U. S. 177, and *In re McDonald*, 489 U. S. 180, the Court feels compelled to enter this order, which will allow it to devote its limited resources to the claims of petitioners who have not abused the Court's process.

Motion denied.

PER CURIAM.

Pro se petitioner Grant Anderson seeks an extraordinary writ pursuant to 28 U. S. C. §2241 and requests permission to proceed *in forma pauperis* under this Court's Rule 39. Pursuant to Rule 39.8, we deny petitioner leave to proceed *in forma pauperis*.^{*} Petitioner is allowed until May 23, 1994, within which to pay the docketing fee required by Rule 38 and to submit his petition in compliance with this Court's Rule 33. For the reasons explained below, we also direct the Clerk of the Court not to accept any further petitions for extraordinary writs from petitioner unless he pays the docketing fee required by Rule 38 and submits his petitions in compliance with Rule 33.

^{*}This Court's Rule 39.8 provides: "If satisfied that a petition for a writ of certiorari, jurisdictional statement, or petition for an extraordinary writ, as the case may be, is frivolous or malicious, the Court may deny a motion for leave to proceed *in forma pauperis*."

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Petitioner is a prolific filer in this Court. In the last three years alone, he has filed 22 separate petitions and motions, including 3 petitions for certiorari, 6 motions for reconsideration, and 13 petitions for extraordinary writs. Thirteen of these petitions and motions have been filed this Term. We have denied all of the petitions and motions without recorded dissent. We have also denied petitioner leave to proceed *in forma pauperis*, pursuant to Rule 39.8, on the last three occasions that he has submitted petitions for extraordinary relief.

Like the majority of his previous submissions to this Court, the instant petition for habeas corpus relates to the denial of petitioner's various postconviction motions by the District of Columbia Court of Appeals. The current petition merely repeats arguments that we have considered previously and not found worthy of plenary review. Like the three petitions in which we denied petitioner leave to proceed *in forma pauperis*, moreover, the instant petition is patently frivolous.

The bulk of petitioner's submissions have been petitions for extraordinary writs, and we limit our sanction accordingly. We have imposed similar sanctions in three prior cases. See *In re Demos*, 500 U. S. 16 (1991); *In re Sindram*, 498 U. S. 177 (1991); *In re McDonald*, 489 U. S. 180 (1989). For the reasons discussed in these cases, we feel compelled to bar petitioner from filing any further requests for extraordinary relief. As we concluded in *Sindram*:

"The goal of fairly dispensing justice . . . is compromised when the Court is forced to devote its limited resources to the processing of repetitious and frivolous requests. *Pro se* petitioners have a greater capacity than most to disrupt the fair allocation of judicial resources because they are not subject to the financial considerations—filing fees and attorney's fees—that deter other litigants from filing frivolous petitions. The risks of abuse are particularly acute with respect to applications for ex-

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traordinary relief, since such petitions are not subject to any time limitations and, theoretically, could be filed at any time without limitation. In order to prevent frivolous petitions for extraordinary relief from unsettling the fair administration of justice, the Court has a duty to deny *in forma pauperis* status to those individuals who have abused the system.” 498 U. S., at 179–180 (citation omitted).

So long as petitioner qualifies under this Court’s Rule 39 and does not similarly abuse the privilege, he remains free to file *in forma pauperis* requests for relief other than an extraordinary writ. See *id.*, at 180. In the meantime, however, today’s order “will allow this Court to devote its limited resources to the claims of petitioners who have not abused our process.” *In re Sassower*, 510 U. S. 4, 6 (1993).

It is so ordered.

JUSTICE STEVENS, with whom JUSTICE BLACKMUN joins, dissenting.

During my years of service on the Court, I have not detected any threat to the integrity of its processes, or its ability to administer justice fairly, caused by frivolous petitions, whether filed by paupers or by affluent litigants. Three years ago I expressed the opinion that the cost of administering sanctions such as that imposed on this petitioner would exceed any perceptible administrative benefit. *In re Amendment to Rule 39*, 500 U. S. 13, 15 (1991). Any minimal savings in time or photocopying costs, it seemed to me, did not justify the damage that occasional orders denying *in forma pauperis* status would cause to “the symbolic interest in preserving equal access to the Court for both the rich and the poor.” *Ibid.* Three years’ experience under this Court’s Rule 39.8 leaves me convinced that the dissenters in the cases the Court cites had it right. See *In re Demos*, 500 U. S. 16, 17–19 (1991); *In re Sindram*, 498 U. S. 177, 180–183

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In this case, respondent was under arrest on *state* narcotics charges at the time he made his inculpatory statement to the Secret Service agents. The terms of § 3501(c) thus did not come into play until respondent was arrested by the agents on a federal charge—*after* he made the statement. Because respondent's statement was made voluntarily, as the District Court found, see App. to Pet. for Cert. 45a, nothing in § 3501 authorized its suppression. See 18 U. S. C. §§ 3501(a), (d). The State's failure to arraign or prosecute respondent does not alter this conclusion. Although Congress could have provided that the exercise of prosecutorial discretion by the State in this scenario retroactively transforms time spent in the custody of state or local officers into time spent under "arrest or other detention" for purposes of § 3501(c), it did not do so in the statute as written. Cf. *Germain*, 503 U. S., at 253–254.

Although we think proper application of § 3501(c) will be as straightforward in most cases as it is here, the parties identify one presumably rare scenario that might present some potential for confusion; namely, the situation that would arise if state or local authorities, acting in collusion with federal officers, were to arrest and detain someone in order to allow the federal agents to interrogate him in violation of his right to a prompt federal presentment. Long before the enactment of § 3501, we held that a confession obtained during such a period of detention must be suppressed if the defendant could demonstrate the existence of improper collaboration between federal and state or local officers. See *Anderson v. United States*, 318 U. S. 350 (1943).⁴ In this

⁴ In *Anderson*, a local sheriff, acting without authority under state law, arrested several men suspected of dynamiting federally owned power lines during the course of a labor dispute and allowed them to be interrogated for several days by agents of the Federal Bureau of Investigation. Only after the suspects made confessions were they arrested by the federal agents and arraigned before a United States Commissioner. We held the confessions to be inadmissible as the "improperly" secured product of an impermissible "working arrangement" between state and federal officers. 318 U. S., at 356.

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case, however, we need not address § 3501's effect, if any, on the rule announced in *Anderson*. The District Court concluded that there was "no evidence" that a "collusive arrangement between state and federal agents . . . caused [respondent's] confession to be made," App. to Pet. for Cert. 50a, and we see no reason to disturb that factual finding. It is true that the Sheriff's Department informed the Secret Service agents that counterfeit currency had been found in respondent's possession, but such routine cooperation between local and federal authorities is, by itself, wholly unobjectionable: "Only by such an interchange of information can society be adequately protected against crime." *United States v. Coppola*, 281 F. 2d 340, 344 (CA2 1960) (en banc), aff'd, 365 U. S. 762 (1961). Cf. *Bartkus v. Illinois*, 359 U. S. 121, 123 (1959).⁵

III

For the foregoing reasons, the judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

So ordered.

⁵ Respondent urges that the judgment below should be affirmed on an alternative ground. Although he was initially arrested on state charges on a Friday afternoon and held in local custody until Monday afternoon, respondent was not brought before a magistrate during this period. In *County of Riverside v. McLaughlin*, 500 U. S. 44, 57 (1991), we held that the Fourth Amendment generally requires a judicial determination of probable cause within 48 hours of a warrantless arrest. Relying on *McLaughlin* and *Gerstein v. Pugh*, 420 U. S. 103 (1975), respondent now asserts that his confession was obtained during an ongoing violation of his Fourth Amendment right to a prompt determination of probable cause. Respondent, however, did not raise a Fourth Amendment claim in the District Court or the Court of Appeals; he argued for suppression based only on the Fifth Amendment and § 3501. Finding no exceptional circumstances that would warrant reviewing a claim that was waived below, we adhere to our general practice and decline to address respondent's Fourth Amendment argument. See *Granfinanciera, S. A. v. Nordberg*, 492 U. S. 33, 38–39 (1989); *Heckler v. Campbell*, 461 U. S. 458, 468–469, n. 12 (1983).